

Development Consent

Section 4.38 of the *Environmental Planning and Assessment Act 1979*

As delegate of the Minister for Planning and Public Spaces under delegation executed on 9 March 2022, I approve the Development Application referred to in Schedule 1, subject to the conditions specified in Schedule 2.

These conditions are required to:

- prevent, minimise, or offset adverse environmental impacts;
- set standards and performance measures for acceptable environmental performance;
- require regular monitoring and reporting; and
- provide for the ongoing environmental management of the development


Joanna Bakopanos
A/Director
Industry Assessments

Sydney

20 December 2024

File: EF23/7568

SCHEDULE 1

Application Number:	SSD- 59416728
Applicant:	Cundall Johnston and Partners Pty Ltd
Consent Authority:	Minister for Planning and Public Spaces
Site:	Lot 1 DP 864615, 3 Davis Road, Wetherill Park
Development:	Construction and operation of two, three-storey data centre buildings and a two-storey storage building with a maximum power consumption of 160.85 MW, including a high voltage substation, earthworks, internal access roads, car parking, tree removal and associated landscaping.

TABLE OF CONTENTS

DEFINITIONS	III
PART A ADMINISTRATIVE CONDITIONS	1
Obligation to Minimise Harm to the Environment.....	1
Terms of Consent	1
Limits of Consent.....	1
Notification of Commencement.....	1
Evidence of Consultation	2
Staging, Combining and Updating Strategies, Plans or Programs	2
Utilities, Services And Public Infrastructure	2
Structural Adequacy	3
External Walls and Cladding.....	3
Compliance.....	3
Contributions to Council.....	3
Housing and Productivity Contribution.....	3
Operation of Plant and Equipment.....	3
Work as Executed Plans.....	4
Applicability of Guidelines	4
PART B SPECIFIC ENVIRONMENTAL CONDITIONS	5
Air Quality	5
Noise	5
Vibration	7
Traffic and Access	7
Soils, Water Quality and Hydrology	8
Aboriginal Heritage	10
Historic Heritage	10
Biodiversity	10
Hazards and Risk	11
Waste Management.....	12
Remediation	12
Contamination	13
Visual Amenity.....	13
PART C ENVIRONMENTAL MANAGEMENT, REPORTING AND AUDITING.....	15
Environmental Management.....	15
Construction Environmental Management Plan.....	15
Operational Environmental Management Plan	15
Revision of Strategies, Plans and Programs	16
Reporting and Auditing	16
Access to Information	17
APPENDIX 1 DEVELOPMENT LAYOUT PLANS.....	19
APPENDIX 2 SENSITIVE RECEIVER LOCATIONS.....	22
APPENDIX 3 BIODIVERSITY ECOSYSTEM CREDITS	23
APPENDIX 4 APPLICANT'S MANAGEMENT AND MITIGATION MEASURES.....	24
APPENDIX 5 INCIDENT NOTIFICATION AND REPORTING REQUIREMENTS.....	29

DEFINITIONS

Additional Information	The Applicant's response to a request for information from the Department, including additional issues raised by government authorities titled Response to Additional Agency Comments – Davis Road Data Centre SSD-59416728, prepared by Willowtree Planning Pty Ltd, dated 16 October 2024 and 25 October 2024.
Applicant	Cundall Johnston and Partners Pty Ltd, or any person carrying out any development to which this consent applies
BCA	Building Code of Australia
Carrier	Operator of a telecommunication network and/or associated infrastructure, as defined in section 7 of the <i>Telecommunications Act 1997</i> (Cth)
Certifier	A council or an accredited certifier (including principal certifiers) authorised under section 6.5 of the EP&A Act to issue Part 6 certificates
CEMP	Construction Environmental Management Plan
Conditions of this consent	Conditions contained in Schedule 2 of this document
Construction	The carrying out of works for the purpose of the development, including bulk earthworks, and erection of buildings and other infrastructure permitted by this consent
Council	Fairfield City Council
Day	The period from 7 am to 6 pm on Monday to Saturday, and 8 am to 6 pm on Sundays and Public Holidays
Department	NSW Department of Planning, Housing and Infrastructure (DPHI)
Development	The development described in Schedule 1, the EIS, Response to Submissions and Additional Information, including the works and activities comprising the construction and 24/7 operation of a data centre, as modified by the conditions of this consent
Development layout	The plans at Appendix 1 of this consent
Earthworks	Bulk earthworks, site levelling, import and compaction of fill material, excavation for installation of drainage and services, to prepare the site for construction
EIS	The Environmental Impact Statement titled Environmental Impact Statement: Davis Road Data Centre (Cundall) – Project Blue Tongue, prepared by Willowtree Planning Pty Ltd dated 21 February 2024, submitted with the application for consent for the development.
ENM	Excavated Natural Material
Environment	As defined in section 1.4 of the EP&A Act
EPA	NSW Environment Protection Authority
EP&A Act	<i>Environmental Planning and Assessment Act 1979</i>
EP&A Regulation	Environmental Planning and Assessment Regulation 2021
EPL	Environment Protection Licence under the POEO Act
Evening	The period from 6 pm to 10 pm
Fibre-ready facility	As defined in section 372W of the <i>Telecommunications Act 1997</i> (Cth)
FRNSW	Fire and Rescue NSW
GFA	Gross Floor Area
Heritage	Encompasses both Aboriginal and historic heritage including sites that predate European settlement, and a shared history since European settlement
Heritage item	An item as defined under the <i>Heritage Act 1977</i> , and assessed as being of local, State and/ or National heritage significance, and/or an Aboriginal Object or Aboriginal Place as defined under the <i>National Parks and Wildlife Act 1974</i> , the World Heritage List, or the National Heritage List or Commonwealth Heritage List under the <i>Environment Protection and Biodiversity Conservation Act 1999</i> (Cth), or anything identified as a heritage item under the conditions of this consent
HPC	Housing and Productivity Contribution

Incident	An occurrence or set of circumstances that causes or threatens to cause material harm to the environment, and as a consequence of that environmental harm, may cause harm to the health and safety of human beings, and which may or may not be or cause a non-compliance Note: “Material harm” is defined in this consent
Land	Has the same meaning as the definition of the term in section 1.4 of the EP&A Act
Material harm	Is harm that: a) involves actual harm to the environment that may include (but not be limited to) a leak, spill, emission other escape or deposit of a substance, and as a consequence of that environmental harm (pollution), may cause harm to the health or safety of people; or b) results in actual loss or property damage of an amount, or amounts in aggregate, exceeding \$10,000 (such loss includes the reasonable costs and expenses that would be incurred in taking all reasonable and practicable measures to prevent, mitigate or make good harm to the environment) Note: This definition excludes “harm” that is either authorised under this consent or any other statutory approval Note: For the purposes of this definition, material harm excludes incidents captured by Work Health and Safety reporting requirements
Minister	NSW Minister for Planning and Public Spaces (or delegate)
Mitigation	Activities associated with reducing the impacts of the development prior to or during those impacts occurring
Night	The period from 10 pm to 7 am on Monday to Saturday, and 10 pm to 8 am on Sundays and Public Holidays
Non-compliance	An occurrence, set of circumstances or development that is a breach of this consent
OEMP	Operational Environmental Management Plan
Operation	The use of a data centre as described in the EIS and RTS
Planning Secretary	Secretary of the Department, or delegate
POEO Act	<i>Protection of the Environment Operations Act 1997</i>
Reasonable	Means applying judgement in arriving at a decision, taking into account: mitigation benefits, costs of mitigation versus benefits provided, community views, and the nature and extent of potential improvements
Registered Aboriginal Parties	Means the Aboriginal persons identified in accordance with the document entitled “ <i>Aboriginal cultural heritage consultation requirements for proponents 2010</i> ” (DECCW)
Rehabilitation	The restoration of land disturbed by the development to a good condition, to ensure it is safe, stable and non-polluting
Response to Submissions (RTS)	The Applicant’s response to issues raised in submissions received in relation to the application for consent for the development under the EP&A Act and includes the document titled Submissions Report: Davis Road Data Centre (Cundall), prepared by Willowtree Planning Pty Ltd and dated 29 August 2024
Sensitive receivers	A location where people are likely to work, occupy or reside, including a dwelling, school, hospital, office or public recreational area
Site	The land defined in Schedule 1
TfNSW	Transport for New South Wales
VENM	Virgin Excavated Natural Material
Waste	Has the same meaning as the definition of the term in the Dictionary to the POEO Act
Year	A period of 12 consecutive months

SCHEDULE 2

PART A ADMINISTRATIVE CONDITIONS

OBLIGATION TO MINIMISE HARM TO THE ENVIRONMENT

- A1. In addition to meeting the specific performance measures and criteria in this consent, all reasonable and feasible measures must be implemented to prevent, and if prevention is not reasonable and feasible, minimise any material harm to the environment that may result from the construction and operation of the development, and any rehabilitation required under this consent.

TERMS OF CONSENT

- A2. The development may only be carried out:
- (a) in compliance with the conditions of this consent;
 - (b) in accordance with all written directions of the Planning Secretary;
 - (c) in accordance with the EIS and Response to Submissions and Additional Information;
 - (d) in accordance with the Development Layout in Appendix 1; and
 - (e) in accordance with the management and mitigation measures in Appendix 4.
- A3. Consistent with the requirements in this consent, the Planning Secretary may make written directions to the Applicant in relation to:
- (a) the content of any strategy, study, system, plan, program, review, audit, notification, report or correspondence submitted under or otherwise made in relation to this consent, including those that are required to be, and have been, approved by the Planning Secretary; and
 - (b) the implementation of any actions or measures contained in any such document referred to in condition A3(a).
- A4. The conditions of this consent and directions of the Planning Secretary prevail to the extent of any inconsistency, ambiguity or conflict between them and a document listed in condition A2(c), or A2(e). In the event of an inconsistency, ambiguity or conflict between any of the documents listed in condition A2(c), or A2(e), the most recent document prevails to the extent of the inconsistency, ambiguity or conflict.

LIMITS OF CONSENT

Lapsing

- A5. This consent lapses five years after the date from which it operates, unless the development has physically commenced on the land to which the consent applies before that date.

Back-up Generator System

- A6. The Applicant must ensure the back-up generators installed and operated under this consent do not exceed a total installed generating capacity of 181.92 megawatts.
- A7. The Applicant must ensure:
- (a) operation of the back-up generators (including testing) does not exceed 200 hours per year; and
 - (b) no more than six (6) generators are tested at any one time.
- Note:** For the purposes of condition A7, calculation of how many hours the back-up generators are tested, as a collective, should be based on the hours (in real time) that testing is in fact undertaken at the site per year. For example, five generators being tested concurrently over the course of an hour would count as one hour towards the threshold stipulated by condition A7 rather than five hours.
- A8. This development consent does not permit the use of the back-up generators:
- (a) for the purpose of generating electricity to be distributed by the National Electricity Market; or
 - (b) to support load curtailment at the site.

NOTIFICATION OF COMMENCEMENT

- A9. The date of commencement of each of the following phases of the development must be notified to the Planning Secretary in writing, at least one month before that date, or as otherwise agreed with the Planning Secretary:
- (a) construction;
 - (b) operation; and
 - (c) cessation of operations.
- A10. If the construction or operation of the development is to be staged, the Planning Secretary must be notified in writing, at least one month before the commencement of each stage (or other timeframe agreed with the Planning Secretary).

EVIDENCE OF CONSULTATION

- A11. Where conditions of this consent require consultation with an identified party, the Applicant must:
- (a) consult with the relevant party prior to submitting the subject document to the Planning Secretary for approval; and
 - (b) provide details of the consultation undertaken including:
 - (i) the outcome of that consultation, matters resolved and unresolved; and
 - (ii) details of any disagreement remaining between the party consulted and the Applicant and how the Applicant has addressed the matters not resolved.

STAGING, COMBINING AND UPDATING STRATEGIES, PLANS OR PROGRAMS

- A12. With the approval of the Planning Secretary, the Applicant may:
- (a) prepare and submit any strategy, plan or program required by this consent on a staged basis (if a clear description is provided as to the specific stage and scope of the development to which the strategy, plan or program applies, the relationship of the stage to any future stages and the trigger for updating the strategy, plan or program);
 - (b) combine any strategy, plan or program required by this consent (if a clear relationship is demonstrated between the strategies, plans or programs that are proposed to be combined); and
 - (c) update any strategy, plan or program required by this consent (to ensure the strategies, plans and programs required under this consent are updated on a regular basis and incorporate additional measures or amendments to improve the environmental performance of the development).
- A13. If the Planning Secretary agrees, a strategy, plan or program may be staged or updated without consultation being undertaken with all parties required to be consulted in the relevant condition in this consent.
- A14. If approved by the Planning Secretary, updated strategies, plans or programs supersede the previous versions of them and must be implemented in accordance with the condition that requires the strategy, plan or program.

UTILITIES, SERVICES AND PUBLIC INFRASTRUCTURE

General Requirements

- A15. Prior to the commencement of construction of the development, the Applicant must:
- (a) consult with the relevant owner and provider of services or public infrastructure that are likely to be affected by the development or that need to be installed as part of the development, to make suitable arrangements for relevant approvals, access to, diversion, protection and support of the affected services or infrastructure;
 - (b) prepare a dilapidation report identifying the condition of all public infrastructure in the vicinity of the site (including roads, gutters and footpaths); and
 - (c) submit a copy of the dilapidation report to the Planning Secretary and Council.
- A16. Unless the Applicant and the applicable authority agree otherwise, the Applicant must:
- (a) repair, or pay the full costs associated with repairing, any public infrastructure that is damaged by carrying out the development;
 - (b) relocate, or pay the full costs associated with relocating, any public infrastructure that needs to be relocated as a result of the development; and
 - (c) obtain any relevant approval(s) from the relevant service provider(s), prior to undertaking construction of the corresponding utility works/ public infrastructure.

Sydney Water

- A17. Prior to the commencement of operation of the development, the Applicant must obtain a Compliance Certificate for water and sewerage infrastructure servicing of the site under section 73 of the *Sydney Water Act 1994*.

Fibre-Ready Facilities

- A18. Prior to the issue of a Construction Certificate for any stage of the development, the Applicant (whether or not a constitutional corporation) is to provide evidence, satisfactory to the Certifier, that arrangements have been made for:
- (a) the installation of fibre-ready facilities to all individual lots and/or premises in the development to enable fibre to be readily connected to any premises that is being or may be constructed on those lots; and
 - (b) the provision of fixed-line telecommunications infrastructure in the fibre-ready facilities to all individual lots and/or premises in the development demonstrated through an agreement with a carrier.
- A19. Prior to the issue of the Occupation Certificate for the development the Applicant must demonstrate that the carrier has confirmed in writing it is satisfied that the fibre-ready facilities are fit-for-purpose.

STRUCTURAL ADEQUACY

- A20. All new buildings and structures, and any alterations or additions to existing buildings and structures, that are part of the development, must be constructed in accordance with the relevant requirements of the NCC.

Note:

- Under Part 6 of the EP&A Act, the Applicant is required to obtain construction and occupation certificates for the proposed building works.
- The EP&A (Development Certification and Fire Safety) Regulation 2021 sets out the requirements for the certification of the development.

EXTERNAL WALLS AND CLADDING

- A21. The external walls of all buildings including additions to existing buildings must comply with the relevant requirements of the BCA.
- A22. Prior to the issue of:
- any Construction Certificate relating to the construction of external walls (including the installation of finishes and claddings such as synthetic or aluminium composite panels); and
 - an Occupation Certificate,
- the Applicant must provide the Certifier with documented evidence that the products and systems proposed for use or used in the construction of external walls (including finishes and claddings such as synthetic or aluminium composite panels) comply with the requirements of the BCA.
- A23. The Applicant must provide a copy of the documentation given to the Certifier to the Planning Secretary within seven days after the Certifier accepts it.

COMPLIANCE

- A24. The Applicant must ensure that all of its employees, contractors (and their sub-contractors) are made aware of, and are instructed to comply with, the conditions of this consent relevant to activities they carry out in respect of the development.

CONTRIBUTIONS TO COUNCIL

- A25. Prior to the issue of a construction certificate for any part of the development, a payment of a levy of 1% of the proposed cost of carrying out the development must be paid to Council under section 7.12 of the EP&A Act and in accordance with the Fairfield City Council Local Infrastructure Contributions Plan.

HOUSING AND PRODUCTIVITY CONTRIBUTION

- A26. Prior to the issue of a Construction Certificate for any part of the development, a housing and productivity contribution (HPC) in accordance with **Table 1** must be paid using the NSW planning portal, as adjusted in accordance with condition A27.

Table 1 Housing and Productivity Contribution Amount

Housing and productivity contribution	Amount
Housing and productivity contribution (base component)	\$625,174.00
Transport project component	\$0
Total housing and productivity contribution	\$625,174.00

- A27. At the time of payment, the amount of the HPC is to be adjusted in accordance with the Environmental Planning and Assessment (Housing and Productivity Contributions) Order 2024 (HPC Order).

The HPC may be made wholly or partly as a non-monetary contribution (apart from any transport project component) if the Minister administering the *Environmental Planning and Assessment Act 1979* agrees.

The HPC is not required to be made to the extent that a planning agreement excludes the application of Subdivision 4 of Division 7.1 of the *Environmental Planning and Assessment Act 1979* to the development, or the HPC Order exempts the development from the contribution.

The amount of the contribution may be reduced under the HPC Order, including if payment is made before 1 July 2025.

OPERATION OF PLANT AND EQUIPMENT

- A28. All plant and equipment used on site, or to monitor the performance of the development, must be:
- maintained in a proper and efficient condition; and
 - operated in a proper and efficient manner.

WORK AS EXECUTED PLANS

- A29. Prior to the issue of the Occupation Certificate for the development, work-as-executed drawings signed by a registered surveyor demonstrating that the stormwater drainage and finished ground levels have been constructed as approved, must be submitted to the Principal Certifier.

APPLICABILITY OF GUIDELINES

- A30. References in the conditions of this consent to any guideline, protocol, Australian Standard or policy are to such guidelines, protocols, Standards or policies in the form they are in as at the date of this consent.
- A31. However, consistent with the conditions of this consent and without altering any limits or criteria in this consent, the Planning Secretary may, when issuing directions under this consent in respect of ongoing monitoring and management obligations, require compliance with an updated or revised version of such a guideline, protocol, Standard or policy, or a replacement of them.

ADVISORY NOTES

- AN1. All licences, permits, approvals and consents as required by law must be obtained and maintained as required for the development. No condition of this consent removes any obligation to obtain, renew or comply with such licences, permits, approvals and consents.

PART B SPECIFIC ENVIRONMENTAL CONDITIONS

AIR QUALITY

Dust Minimisation

- B1. The Applicant must take all reasonable steps to minimise dust generated during all works authorised by this consent.
- B2. During construction of the development, the Applicant must ensure that:
- (a) exposed surfaces and stockpiles are suppressed by regular watering or other alternative suppression method;
 - (b) all trucks entering or leaving the site with loads have their loads covered;
 - (c) trucks associated with the development do not track dirt onto the public road network;
 - (d) public roads used by these trucks are kept clean; and
 - (e) land stabilisation works are carried out progressively on site to minimise exposed surfaces.

Air Quality Discharges

- B3. The Applicant must install and operate equipment in line with best practice to ensure that the development complies with all load limits, air quality criteria/air emission limits and air quality monitoring requirements as specified in the Protection of the Environment Operations (Clean Air) Regulation 2022.

Back-up Generator System

- B4. The Applicant must ensure the design, installation and operation of the back-up generators and/or the associated enclosures do not preclude the ability for additional air pollution emission controls to be retrofitted.

Air Quality Management Plan

- B5. Prior to the commencement of operation of the development, the Applicant must prepare an Air Quality Management Plan (AQMP) to the satisfaction of the Planning Secretary. The AQMP must form part of the OEMP required by condition C5. The AQMP must:
- (a) be prepared by a suitably qualified and experienced person(s);
 - (b) detail and rank all emissions from all sources of the development, including particulate emissions;
 - (c) describe a program that is capable of evaluating the performance of the operation against the criteria in the *Approved Methods for Modelling and Assessment of Air Pollutants in NSW (2022)* (The Approved Methods) (including during a power outage event) and determining compliance with key performance indicators;
 - (d) identify any required control measures that will be implemented for each emission source;
 - (e) outline monitoring procedures which would be implemented during each power outage event; and
 - (f) include a Power Outage Notification Protocol (PONP) for the development that must:
 - (i) identify the neighbouring properties which would be notified should a power outage event last 30 minutes or more;
 - (ii) identify the trigger point(s) for notifying neighbouring properties that the back-up generator system is operating; and
 - (iii) detail how these properties would be made aware that the development's back-up generator system is required to operate for the duration of the power outage event.
- B6. The Applicant must:
- (a) not commence operation until the Air Quality Management Plan required by condition B5 is approved by the Planning Secretary; and
 - (b) implement the most recent version of the Air Quality Management Plan approved by the Planning Secretary for the duration of the development.

NOISE

Hours of Work

- B7. The Applicant must comply with the hours detailed in **Table 2** below.

Table 2 Hours of Work

Activity	Day	Time
Construction	Monday – Friday	7 am to 6 pm
	Saturday	8 am to 1 pm
Operation	Monday – Sunday	24 hours

- B8. Works outside of the hours identified in condition B7 may be undertaken in the following circumstances:
- (a) works that are inaudible at the nearest sensitive receivers;
 - (b) works agreed to in writing by the Planning Secretary;
 - (c) for the delivery of materials required outside these hours by the NSW Police Force or other authorities for safety reasons; or
 - (d) where it is required in an emergency to avoid the loss of lives, property or to prevent environmental harm.

Construction Noise Limits

- B9. The development must be constructed to achieve the construction noise management levels detailed in *the Interim Construction Noise Guideline* (DECC, 2009) (as may be updated or replaced from time to time). All feasible and reasonable noise mitigation measures must be implemented and any activities that could exceed the construction noise management levels must be identified and managed in accordance with the management and mitigation measures in the Appendix 4.

Construction Noise Management Plan

- B10. The Applicant must prepare a Construction Noise Management Plan for the development to the satisfaction of the Planning Secretary. The Plan must form part of a CEMP in accordance with condition C2 and must:
- (a) be prepared by a suitably qualified and experienced noise expert;
 - (b) describe procedures for achieving the noise management levels in EPA's *Interim Construction Noise Guideline* (DECC, 2009) (as may be updated or replaced from time to time);
 - (c) describe the measures to be implemented to manage high noise generating works (such as piling);
 - (d) describe the community consultation undertaken in relation to construction noise management and outline any strategies development with the community to manage high noise generating works, or to provide respite periods; and
 - (e) include a complaints management system that would be implemented for the duration of the development.
- B11. The Applicant must:
- (a) not commence construction until the Construction Noise Management Plan required by condition B10 is approved by the Planning Secretary; and
 - (b) implement the most recent version of the Construction Noise Management Plan approved by the Planning Secretary for the duration of construction.

Operational Noise Limits

- B12. The Applicant must ensure that noise generated by operation of the development does not exceed the noise limits in **Table 3** below.

Table 3 Noise Limits (dB(A))

Location	Day L _{Aeq} (15 minute)	Evening L _{Aeq} (15 minute)	Night L _{Aeq} (15 minute)
R1	46	45	42
R2	49	48	41
R3	57	48	43
R4	57	48	43
R5	49	48	41
Education receiver	43		
Commercial receivers	63		
Industrial receivers	68		

Note Noise generated by the development is to be measured in accordance with the relevant procedures and exemptions (including certain meteorological conditions) of the NSW Noise Policy for Industry (EPA, 2017) (as may be updated or replaced from time to time). Refer to the plan in Appendix 2 of this consent for the location of residential sensitive receivers

B13. The Applicant must ensure the operation of plant and equipment does not generate intermittent noise at receiver locations identified in **Table 3** in accordance with Fact Sheet C of the NSW Noise Policy for Industry (EPA, 2017).

Post-Commissioning Noise Verification Report

B14. Within three months of the commencement of full operation of the development (described in the EIS as being when all data storage equipment and associated infrastructure is in place and operating), or as otherwise directed by the Planning Secretary, the Applicant must prepare and submit a noise verification report for the development. The noise verification report must:

- (a) be prepared to the satisfaction of the Planning Secretary by a suitably qualified acoustic consultant;
- (b) demonstrate that noise verification has been carried out by a suitably qualified and experienced acoustic consultant in accordance with the latest version of:
 - (i) *AS 1055:2018 Acoustics – Description and measurement of environmental noise* (Standards Australia, 2018); and
 - (ii) *Approved Methods for the Measurement and Analysis of Environmental Noise in NSW* (EPA, 2022); and
- (c) include:
 - (i) an analysis of the development's compliance with the noise limits specified in condition B12;
 - (ii) an outline of management actions to be taken to address circumstances where the noise limits specified in condition B12 are exceeded; and
 - (iii) a description of contingency measures in the event management actions are not effective in reducing noise levels to an acceptable level.

VIBRATION

Vibration Criteria

B15. Vibration caused by construction at any residence or structure outside the site must be limited to:

- (a) for structural damage, the latest version of *DIN 4150-3 (1992-02) Structural vibration - Effects of vibration on structures* (German Institute for Standardisation, 1999); and
- (b) for human exposure, the acceptable vibration values set out in the *Environmental Noise Management Assessing Vibration: A technical guideline* (DEC, 2006) (as may be updated or replaced from time to time).

TRAFFIC AND ACCESS

Construction Traffic Management Plan

B16. Prior to the commencement of construction of the development, the Applicant must prepare a Construction Traffic Management Plan for the development to the satisfaction of the Planning Secretary. The plan must form part of the CEMP required by condition C2 and must:

- (a) be prepared by a suitably qualified and experienced person(s);
- (b) be prepared in consultation with Council;
- (c) detail the measures that are to be implemented to ensure road safety and network efficiency during construction;
- (d) detail heavy vehicle routes, access and parking arrangements;
- (e) include a Driver Code of Conduct to:
 - (i) minimise the impacts of earthworks and construction on the local and regional road network;
 - (ii) minimise conflicts with other road users;
 - (iii) minimise road traffic noise; and
 - (iv) ensure truck drivers use specified routes;
- (f) include a program to monitor the effectiveness of these measures; and
- (g) if necessary, detail procedures for notifying residents and the community (including local schools), of any potential disruptions to routes.

B17. The Applicant must:

- (a) not commence construction until the Construction Traffic Management Plan required by condition B16 is approved by the Planning Secretary; and
- (b) implement the most recent version of the Construction Traffic Management Plan approved by the Planning Secretary for the duration of construction.

Roadworks and Access

B18. Prior to the commencement of works on Davis Road, which includes removal of an existing driveway, establishment of a new driveway and kerb and gutter reinstatement works, the Applicant must:

- (a) prepare and submit design plans to the satisfaction of Council, which demonstrate that the proposed accesses to the development that are to be used by heavy vehicles are designed to accommodate the turning path of a 19 m semi-trailer vehicle; and
- (b) obtain approval from Council under section 138 of the *Roads Act 1993* for these works.

Parking

B19. The Applicant must provide sufficient parking facilities on-site, including for heavy vehicles and for site personnel, to ensure that traffic associated with the development does not utilise public and residential streets or public parking facilities.

Operating Conditions

B20. The Applicant must ensure:

- (a) internal roads, driveways and parking (including grades, turn paths, sight distance requirements, aisle widths, aisle lengths and parking bay dimensions) associated with the development are constructed and maintained in accordance with the latest version of *AS 2890.1:2004 Parking facilities Off-street car parking* (Standards Australia, 2004), *AS 2890.2:2018 Parking facilities Off-street Commercial Vehicle Facilities* (Standards Australia, 2018) and *AS 2890.6:2009 Parking facilities Off-street parking for people with disabilities* (Standards Australia, 2009)
- (b) the swept path of the longest vehicle entering and exiting the site, as well as manoeuvrability through the site, is in accordance with the relevant AUSTROADS guidelines;
- (c) the development does not result in any vehicles queuing on the public road network;
- (d) heavy vehicles and bins associated with the development are not parked on local roads or footpaths in the vicinity of the site;
- (e) all vehicles are wholly contained on site before being required to stop;
- (f) all loading and unloading of materials is carried out on-site;
- (g) the proposed turning areas in the car park are kept clear of any obstacles, including parked cars, at all times;
- (h) any driveways/accesses that are not designed to cater for larger service vehicles e.g. 12.5m HRVs or 19m articulated vehicles shall be signposted with "*No Entry, vehicles under _m excepted*" restrictions to ensure that the safety of road users on the external adjoining road network are not impacted; and
- (i) provide one-way travel direction line marking and signage, in accordance with the approved plans (SYD067-CDL-00-XX-DR-A-1011 Rev I) to ensure one-way travel direction within the entire site area.

Work Place Travel Plan

B21. Prior to the commencement of operation of the development, the Applicant must prepare a Work Place Travel Plan to encourage the use of sustainable and active transport options by operational staff. The Plan must form part of the OEMP required by condition C5 and must:

- (a) outline facilities and measures to promote public transport usage, such as car share schemes and employee incentives; and
- (b) describe pedestrian and bicycle linkages and end of trip facilities available on-site.

B22. The Applicant must:

- (a) not commence operation until the Work Place Travel Plan has been submitted to the Planning Secretary; and
- (b) implement the most recent version of the Work Place Travel Plan submitted to the Planning Secretary for the duration of operation.

SOILS, WATER QUALITY AND HYDROLOGY

Imported Soil

B23. The Applicant must:

- (a) ensure that only VENM, ENM, or other material approved in writing by EPA is brought onto the site;
- (b) keep accurate records of the volume and type of fill to be used; and
- (c) make these records available to the Planning Secretary upon request.

Erosion and Sediment Control

- B24. Prior to the commencement of any construction for the development, the Applicant must install suitable erosion and sediment control measures on-site, in accordance with the relevant requirements of the *Managing Urban Stormwater: Soils and Construction - Volume 1: Blue Book* (Landcom, 2004) guideline and the Erosion and Sediment Control Plan included in the CEMP required by condition C2.
- B25. The Applicant must maintain the erosion and sediment control measures installed on-site in accordance with condition B24 for the duration of construction of the development.

Discharge Limits

- B26. The development must comply with section 120 of the POEO Act, which prohibits the pollution of waters, except as expressly provided for in an EPL.

Stormwater Management System

- B27. Prior to the commencement of construction of the development, the Applicant must finalise the detailed design of the stormwater management system for the development. The system must:
- (a) be designed by a suitably qualified and experienced person(s);
 - (b) be designed in consultation with Council;
 - (c) be generally in accordance with the conceptual design in the EIS and RTS;
 - (d) be in accordance with applicable Australian Standards; and
 - (e) ensure that the system capacity has been designed in accordance with *Australian Rainfall and Runoff* (Engineers Australia, 2016) and *Managing Urban Stormwater: Council Handbook* (EPA, 1997) guidelines;
- B28. Prior to the commencement of operation, the Applicant must install the stormwater management system in accordance with the finalised detailed design (as required by condition B27) and ensure the system is operational.
- B29. The Applicant must maintain the stormwater management system installed on the site under condition B28 for the duration of the development.

Flood Management

- B30. Prior to the commencement of construction of the development, the Applicant must prepare a Construction Flood Emergency Response Plan (CFERP). The CFERP must form part of the CEMP required by condition C2 and must:
- (a) be prepared by a suitably qualified and experienced person(s);
 - (b) address the provisions of the *Floodplain risk management manual* (DPE, 2023) and *Support for emergency management planning* (DPE, 2023); and
 - (c) include details of:
 - (i) the flood emergency responses for both construction and operation phases of the development;
 - (ii) predicted flood levels;
 - (iii) flood warning time and flood notification;
 - (iv) assembly points and evacuation routes;
 - (v) evacuation and refuge protocols; and
 - (vi) awareness training for employees and contractors.
- B31. The Applicant must:
- (a) not commence construction until the CFERP required by condition B30 is submitted to the Planning Secretary; and
 - (b) implement the most recent version of the CFERP submitted to the Planning Secretary for the duration of the development.
- B32. Prior to the commencement of operation of the development, the Applicant must update the CFERP for the purposes of operation of the development in an Operational Flood Emergency Response Plan (OFERP). The OFERP must form part of the OEMP required by condition C5 and must:
- (a) be prepared by a suitably qualified and experienced person(s);
 - (b) address the provisions of the *Floodplain risk management manual* (DPE, 2023) and *Support for emergency management planning* (DPE, 2023); and
 - (c) include details of:
 - (i) the flood emergency responses for both construction and operation phases of the development;
 - (ii) predicted flood levels;
 - (iii) flood warning time and flood notification;

- (iv) assembly points and evacuation routes;
- (v) evacuation and refuge protocols; and
- (vi) awareness training for employees and contractors.

B33. The Applicant must:

- (a) not commence operation of the development until the OFERP required by condition B32 is submitted to the Planning Secretary; and
- (b) implement the most recent version of the OFERP submitted to the Planning Secretary for the operational life of the development.

B34. All floor levels must be no lower than the 1% Annual Exceedance Probability flood plus 500 mm of freeboard.

B35. Any structures below the 1% Annual Exceedance Probability plus 500 mm of freeboard must be constructed from flood compatible building components.

ABORIGINAL HERITAGE

Unexpected Finds Protocol

B36. If any item or object of Aboriginal heritage significance is identified on site:

- (a) all work in the immediate vicinity of the suspected Aboriginal item or object must cease immediately;
- (b) a 10 m wide buffer area around the suspected item or object must be cordoned off; and
- (c) Heritage NSW must be contacted immediately.

B37. Work in the immediate vicinity of the Aboriginal item or object may only recommence in accordance with the provisions of Part 6 of the *National Parks and Wildlife Act 1974*.

HISTORIC HERITAGE

Unexpected Finds Protocol

B38. If any non-Aboriginal archaeological relics are uncovered during any works being carried out for the development:

- (a) all work in the immediate vicinity of the suspected relic(s) must cease immediately;
- (b) Heritage NSW must be contacted immediately; and
- (c) the suspected relic(s) must be evaluated, recorded and, if necessary, excavated by a suitably qualified and experienced expert in accordance with the requirements of Heritage NSW.

B39. Work in the immediate vicinity of any suspected non-Aboriginal archaeological relic(s) must not recommence until this has been authorised by Heritage NSW.

BIODIVERSITY

Ecosystem Credits

B40. Prior to any clearing or construction works for the development, the Applicant must purchase and retire eighteen (18) ecosystem credits to offset the removal of the ecosystems identified in Appendix 3 of this consent. The ecosystem credits must be retired in accordance with the requirements of the Biodiversity Offsets Scheme and the *Biodiversity Conservation Act 2016*.

B41. The requirement to retire ecosystem credits (see condition B40) may be satisfied by payment to the Biodiversity Conservation Fund of an amount equivalent to the number and classes of ecosystem credits, as calculated by the Biodiversity Offsets Payment Calculator.

B42. Prior to undertaking any clearing or construction works for the development, the Applicant must provide the Planning Secretary with evidence that:

- (a) the retirement of ecosystem credits has been completed in accordance with condition B41; or
- (b) a payment has been made to the Biodiversity Conservation Fund in accordance with condition B41.

Tree Protection Measures

B43. All trees identified for retention within the site are to be retained and protected in accordance with the latest version of Australian Standard 4970:2009 – *Protection of Trees on Development* for the duration of the development.

B44. Prior to the removal of vegetation, where tree hollows are to be removed, and/or hollow dependent native fauna are found using existing hollows, compensatory tree hollows should be provided prior to removing the tree hollows and prior to the release of the hollow dependent fauna, unless the removed tree hollows can be relocated and installed on the same day they are removed.

Biodiversity Management Plan

- B45. Prior to clearing for construction of the development, the Applicant must prepare a Biodiversity Management Plan (BMP) for the development in consultation with BCS to the satisfaction of the Planning Secretary. The Biodiversity Management Plan must be approved by the Planning Secretary prior to the commencement of clearing for construction and must form part of the CEMP in accordance with condition C2. The Plan must include the following:
- (a) be prepared by a suitability qualified ecologists;
 - (b) be prepared in consultation with Council, Greater Sydney Local Land Services and any relevant local community restoration or Landcare groups;
 - (c) a program for pre-clearance fauna surveys to determine the presence of resident native fauna using nests, dreys and hollows as habitat;
 - (d) measures to manage the relocation of any resident native fauna potentially impacted by the removal of trees to an appropriate nearby location or replacement habitat and supervision of a qualified ecologist or licensed wildlife handler;
 - (e) measures to be implemented to accommodate fauna habitat including but not limited to, the installation of nest boxes prior to any vegetation removal, salvage and relocation of tree hollows and installation of habitat features such as logs; and
 - (f) a procedure for the re-use of native trees that are to be removed, including tree trunks, root balls and tree hollows where native trees are able to be re-used.
- B46. The Applicant must:
- (a) not commence construction until the Biodiversity Management Plan is approved by the Planning Secretary; and
 - (b) implement the most recent version of the Biodiversity Management Plan approved by the Planning Secretary.

HAZARDS AND RISK

- B47. The Applicant must ensure that the quantities of dangerous goods stored or transported to and from the development will not exceed the screening threshold quantities in the Department's *Applying SEPP 33* at all times.
- B48. Dangerous goods, as defined by the Australian Dangerous Goods Code, must be stored and handled strictly in accordance with:
- (a) all relevant Australian Standards;
 - (b) for liquids, the NSW EPA's Storing and Handling of Liquids: Environmental Protection – Participants Manual.'

In the event of an inconsistency between the requirements of condition B48(a) and B48(b), the most stringent requirement shall prevail to the extent of the inconsistency.

Fire Safety Study

- B49. At least one month prior to the commencement of construction of the development (except for construction of those preliminary works that are outside the scope of the hazard studies), or within such further period as the Planning Secretary may agree, the Applicant must prepare and submit a Fire Safety Study (FSS) for the development to the Planning Secretary and FRNSW. The FSS must:
- (a) meet the operational requirements of FRNSW;
 - (b) address the relevant aspects of:
 - (i) *Hazardous Industry Planning Advisory Paper No. 2, 'Fire safety study guidelines'* (DoP, 2011); and
 - (ii) *Best practice guidelines for contaminated water retention and treatment systems* (NSW HMPCC, 1994); and
 - (c) consider the operational capability of local fire authorities and the need for the facility to achieve an adequate level of on-site fire and life safety independence;
 - (d) verify that the final design of the fire safety system(s) complies with:
 - (i) *AS/NZS 4681:2000 The storage and handling of Class 9 (miscellaneous) dangerous goods and articles* (Standards Australia, 2000);
 - (ii) *IEC 62619:2022 Secondary cells and batteries containing alkaline or other non-acid electrolytes – Safety requirements for secondary lithium cells and batteries, for use in industrial applications* (Standards Australia, 2023); and
 - (iii) *AS 1940:2017 The storage and handling of flammable and combustible liquids* (Standards Australia, 2017); and
 - (e) report on the outcome of consultation with FRNSW regarding compliance with *Loss Prevention Data Sheet 5-32 – Data centres and related facilities* (FM Global Property, 2022).

- (f) In the event of an inconsistency between the requirements listed in subpoints (d)(i) to (d)(iii) above, the requirements as agreed to with FRNSW shall prevail to the extent of inconsistency.

B50. The Applicant must:

- (a) not commence construction of the development (except for construction of preliminary works that are outside the scope of the fire-related reports or studies) until the FSS (see condition B49) has been approved by FRNSW; and
- (b) provide a copy of the approved FSS to the Planning Secretary within seven days after it is approved by FRNSW.

Emergency Plan

B51. At least two months prior to the commencement of commissioning of the development, or within such further period as the Planning Secretary may agree, the Applicant must submit a comprehensive Emergency Plan and detailed emergency procedures for the development to the Planning Secretary and FRNSW. The Emergency Plan must include consideration of the safety of all people outside of the development who may be at risk from the development. The plan must be prepared in accordance with the Department's *Hazardous Industry Planning Advisory Paper No. 1, 'Emergency Planning'*.

Emergency Services Information Package

B52. From the commencement of construction and for the life of the development, an Emergency Services Information Package, developed in accordance with the FRNSW *Fire Safety Guideline – Emergency Services Information Package and Tactical Fire Plans*, must be stored in an emergency information cabinet directly adjacent to the main entry point to the site.

Bunding

B53. The Applicant must store all chemicals, fuels and oils used on-site in appropriately banded areas in accordance with the requirements of all relevant Australian Standards, and/or EPA's *Storing and Handling of Liquids: Environmental Protection – Participants Manual* (Department of Environment and Climate Change, 2007).

WASTE MANAGEMENT

Pests, Vermin and Priority Weed Management

B54. The Applicant must:

- (a) implement suitable measures to manage pests, vermin and declared priority weeds on the site; and
- (b) inspect the site on a regular basis to ensure that these measures are working effectively, and that pests, vermin or priority weeds are not present on site in sufficient numbers to pose an environmental hazard or cause the loss of amenity in the surrounding area.

Note: For the purposes of this condition, priority weed has the same definition of the term in the Biosecurity Act 2015.

REMEDIATION

Site Auditor

B55. Prior to the commencement of remediation works, the Applicant must engage a Site Auditor accredited under the *Contaminated Lands Management Act 1997* (CLM Act) NSW Site Auditor Scheme.

Remediation Works

B56. The site is to be remediated in accordance with the Remedial Action Plan (RAP), the CEMP and any relevant guidelines produced or approved under the CLM Act. If any amendments are required to the RAP, they must be reviewed and approved by the Site Auditor in the form of an Interim Audit Advice.

B57. The Applicant must ensure the remediation works for the development are undertaken by a suitably qualified and experienced contractor(s).

Validation Report

B58. Within three months of the completion of the remediation works required under condition B56, or as otherwise agreed with the Planning Secretary, the Applicant must submit a Validation Report to the Site Auditor and Planning Secretary which demonstrates the remediation works have been completed in accordance with the RAP and the CEMP. The validation report must include:

- (a) details of the remediation works undertaken;
- (b) details of any unexpected contamination find(s) (see condition B60);
- (c) validation of any imported fill used during the remediation works (see condition B23); and
- (d) information confirming that the objectives of the RAP have been achieved.

Site Audit Statement

B59. Prior to the commencement of operation, or as otherwise agreed with the Planning Secretary, the Applicant must obtain a Site Audit Statement from the Site Auditor to confirm:

- (a) the remedial works approved under this consent have been completed in accordance with the remediation objectives listed in the RAP; and
- (a) the site is suitable for its intended data centre use.

A copy of the final Site Audit Report and Site Audit Statement must be provided to the Planning Secretary.

CONTAMINATION

Unexpected Finds

B60. Prior to the commencement of construction, the Applicant must prepare an unexpected contamination finds procedure to ensure that potentially contaminated material is appropriately managed. The procedure must form part of the of the CEMP in accordance with condition C2 and must ensure any material identified as contaminated is managed in accordance with the POEO Act and its associated regulations. Details of the final management approach and the results of any associated testing must be submitted to the Planning Secretary within six weeks of the Applicant becoming aware of the contamination find, or as otherwise agreed to by the Planning Secretary.

Asbestos

B61. The Applicant must ensure that any asbestos encountered during the remediation and construction works for the development is monitored, handled, transported and disposed of by appropriately qualified and licensed contractors in accordance with the requirements of SafeWork NSW and relevant guidelines, including:

- (a) *Work Health and Safety Regulation 2017*;
- (b) SafeWork NSW Code of Practice – How to Manage and Control Asbestos in the Workplace December 2022;
- (c) SafeWork NSW Code of Practice – How to Safely Remove Asbestos December 2022; and
- (d) *Protection of the Environment Operations (Waste) Regulation 2014*.

VISUAL AMENITY

Landscaping

B62. Prior to the commencement of operation of the development, the Applicant must prepare a Landscape Management Plan to manage the revegetation and landscaping works on-site, to the satisfaction of the Planning Secretary. The plan must form part of an OEMP in accordance with condition C5. The plan must:

- (a) detail the species, quantity and location of trees, shrubs and groundcover to be planted on-site;
- (b) demonstrate planting and landscaping on the site to local native provenance trees, shrubs and groundcover species from the relevant native vegetation community occurring on the site;
- (c) demonstrate tree planting will use advanced and established locally native trees where available and practicable;
- (d) include details on seed collection and identification of the location of all native seed sources;
- (e) describe the monitoring and maintenance measures to manage revegetation and landscaping works; and
- (f) be consistent with the Applicant's Management and Mitigation Measures in Appendix 4 and the Landscape Architecture Design Report prepared by Arcadia.

B63. The Applicant must:

- (a) not commence operation until the Landscape Management Plan is approved by the Planning Secretary.
- (b) implement the most recent version of the Landscape Management Plan approved by the Planning Secretary; and
- (c) maintain the landscaping and vegetation on the site in accordance with the approved Landscape Management Plan required by condition B62 for the life of the development.

Lighting

B64. The Applicant must ensure the lighting associated with the development:

- (a) complies with the latest version of AS 4282-2019 - *Control of the obtrusive effects of outdoor lighting* (Standards Australia, 2019); and
- (b) is mounted, screened and directed in such a manner that it does not create a nuisance to surrounding properties or the public road network.

Signage and Fencing

B65. All signage and fencing must be erected in accordance with the development plans included in the RTS.

Note: *This condition does not apply to temporary construction and safety related signage and fencing.*

PART C ENVIRONMENTAL MANAGEMENT, REPORTING AND AUDITING

ENVIRONMENTAL MANAGEMENT

Management Plan Requirements

- C1. Management plans required under this consent must be prepared in accordance with relevant guidelines, and include:
- (a) a condition compliance table for that plan;
 - (b) detailed baseline data (where required);
 - (c) details of:
 - (i) the relevant statutory requirements (including any relevant approval, licence or lease conditions);
 - (ii) any relevant limits or performance measures and criteria; and
 - (iii) the specific performance indicators that are proposed to be used to judge the performance of, or guide the implementation of, the development or any management measures;
 - (d) a description of the measures to be implemented to comply with the relevant statutory requirements, limits, or performance measures and criteria;
 - (e) a program to monitor and report on the:
 - (i) impacts and environmental performance of the development; and
 - (ii) effectiveness of the management measures set out pursuant to paragraph (d) above;
 - (f) a contingency plan to manage any unpredicted impacts and their consequences and to ensure that ongoing impacts reduce to levels below relevant impact assessment criteria as quickly as possible;
 - (g) a program to investigate and implement ways to improve the environmental performance of the development over time;
 - (h) a protocol for managing and reporting any:
 - (i) incident and any non-compliance (specifically including any exceedance of the impact assessment criteria and performance criteria);
 - (ii) complaint;
 - (iii) failure to comply with statutory requirements; and
 - (i) a protocol for periodic review of the plan.

Note: The Planning Secretary may waive some of these requirements if they are unnecessary or unwarranted for particular management plans

CONSTRUCTION ENVIRONMENTAL MANAGEMENT PLAN

- C2. The Applicant must prepare a Construction Environmental Management Plan (CEMP) for the development in accordance with the requirements of condition C1 and to the satisfaction of the Planning Secretary.
- C3. As part of the CEMP required under condition C2 of this consent, the Applicant must include the following:
- (a) Construction Noise Management Plan (see condition B10);
 - (b) Construction Traffic Management Plan (see condition B16);
 - (c) Erosion and Sediment Control Plan (see condition B24);
 - (d) a copy of the Flood Emergency Response (see condition B30);
 - (e) Biodiversity Management Plan (see condition B45);
 - (f) Unexpected Contamination Finds Protocol (see condition B60); and
 - (g) Community Consultation and Complaints Handling.
- C4. The Applicant must:
- (a) not commence construction of the development until the CEMP is approved by the Planning Secretary; and
 - (b) carry out the construction of the development in accordance with the CEMP approved by the Planning Secretary and as revised and approved by the Planning Secretary from time to time.

OPERATIONAL ENVIRONMENTAL MANAGEMENT PLAN

- C5. The Applicant must prepare an Operational Environmental Management Plan (OEMP) for the development in accordance with the requirements of condition C1 and to the satisfaction of the Planning Secretary.
- C6. As part of the OEMP required under condition C5 of this consent, the Applicant must include the following:
- (a) describe the role, responsibility, authority and accountability of all key personnel involved in the environmental management of the development;
 - (b) describe the procedures that would be implemented to:

- (i) keep the local community and relevant agencies informed about the operation and environmental performance of the development;
- (ii) receive, handle, respond to, and record complaints;
- (iii) resolve any disputes that may arise;
- (iv) respond to any non-compliance;
- (v) respond to emergencies; and
- (c) include the following environmental management plans:
 - (i) Air Quality Management Plan (see condition B5);
 - (ii) a copy of the Work Place Travel Plan (see condition B21);
 - (iii) a copy of the Flood Emergency Response (see condition B32); and
 - (iv) Landscape Management Plan (see condition B62).

C7. The Applicant must:

- (a) not commence operation until the OEMP is approved by the Planning Secretary; and
- (b) operate the development in accordance with the OEMP approved by the Planning Secretary (and as revised and approved by the Planning Secretary from time to time).

REVISION OF STRATEGIES, PLANS AND PROGRAMS

C8. Within three months of:

- (a) the submission of an incident report under condition C10;
- (b) the submission of a Compliance Report under condition C14;
- (c) the approval of any modification of the conditions of this consent; or
- (d) the issue of a direction of the Planning Secretary under condition A2(b) which requires a review,

the strategies, plans and programs required under this consent must be reviewed, and the Planning Secretary must be notified in writing of the outcomes of any review.

C9. If identified as part of the review process (see condition C8) or considered necessary to improve the environmental performance of the development, the strategies, plans and programs required under this consent must be revised, to the satisfaction of the Planning Secretary. Where revisions are required, the revised document must be submitted to the Planning Secretary for approval within six weeks of the review required under condition C8, or such other timing as agreed by the Planning Secretary.

Note: *This is to ensure strategies, plans and programs are updated on a regular basis and to incorporate any recommended measures to improve the environmental performance of the development.*

REPORTING AND AUDITING

Incident Notification, Reporting and Response

C10. The Applicant must notify the Department within 24 hours of becoming aware of an incident. The notification must be made via the NSW planning portal (Major Projects) and address details of the incident including:

- (a) date, time and location;
- (b) a brief description of what occurred and why it has been classified as an incident;
- (c) a description of what immediate steps were taken in relation to the incident; and
- (d) identifying a contact person for further communication regarding the incident.

C11. The Applicant must provide the Department with a subsequent incident report in accordance with the requirements set out in Appendix 5 (Incident Notification and Reporting Requirements).

Non-Compliance Notification

C12. Within seven days of becoming aware of any non-compliance, the Applicant must notify the Department of the non-compliance, in writing, via the NSW planning portal (Major Projects).

C13. A non-compliance notification submitted under condition C12 must identify the development (including the development application number and name), set out the condition of this consent that the development is non-compliant with, why it does not comply, the reasons for the non-compliance (if known), and what actions have been undertaken, or will be undertaken, and when, to address the non-compliance.

Note: *A non-compliance which has been notified as an incident does not need to also be notified as a non-compliance.*

Compliance Reporting

- C14. Within the first year of commencement of operation of the development, and in the same month each subsequent year (or such other timing as agreed by the Planning Secretary), the Applicant must submit a Compliance Report to the Planning Secretary reviewing the environmental performance of the development to the satisfaction of the Planning Secretary. Compliance Reports must be prepared in accordance with the Compliance Reporting Post Approval Requirements (Department 2020) and must also:
- (a) identify any trends in the monitoring data over the life of the development;
 - (b) identify any discrepancies between the predicted and actual impacts of the development, and analyse the potential cause of any significant discrepancies; and
 - (c) describe what measures will be implemented over the next year to improve the environmental performance of the development.
- C15. The Applicant must make each Compliance Report publicly available no later than 60 days after submitting it to the Planning Secretary and notify the Planning Secretary in writing at least seven days before this is done.

Back-up Generator Testing

- C16. For the life of the development (or such other time as agreed to in writing by the Planning Secretary), the Applicant must maintain a log of all back-up generator tests undertaken at the site. For each test, the log must detail the following:
- (a) the date and time of the test;
 - (b) the total number of back-up generators which were tested; and
 - (c) the duration of the test.

A copy of the log must be made available to the Planning Secretary upon request.

- C17. Within 30 days of the emergency electricity generators being used to power the development during a power outage event (or as otherwise agreed to in writing by the Planning Secretary), the Applicant must prepare and submit a Back-up Generator Incident Report for the development to the Planning Secretary. The report must include:
- (a) date and time of the power outage event
 - (b) date and time of generator operation;
 - (c) identification of generators used to power the development;
 - (d) duration of each generator operation and total generator operation;
 - (e) total quantity of diesel fuel used by the back-up generators;
 - (f) total amount of electricity produced by the back-up generators;
 - (g) assessment of air quality impacts resultant from the operation of the generators; and
 - (h) assessment and recommendation of additional measures that could be implemented to reduce future impacts, including but not limited to reduced likelihood of generator operation and retrofit of generator emission controls.

Monitoring and Environmental Audits

- C18. Any condition of this consent that requires the carrying out of monitoring or an environmental audit, whether directly or by way of a plan, strategy or program, is taken to be a condition requiring monitoring or an environmental audit under Division 9.4 of Part 9 of the EP&A Act. This includes conditions in respect of incident notification, reporting and response, non-compliance notification, compliance reporting and independent auditing.

Note: For the purposes of this condition, as set out in the EP&A Act, "monitoring" is monitoring of the development to provide data on compliance with the consent or on the environmental impact of the development, and an "environmental audit" is a periodic or particular documented evaluation of the development to provide information on compliance with the consent or the environmental management or impact of the development.

ACCESS TO INFORMATION

- C19. At least 48 hours before the commencement of construction of the development and for the life of the development, the Applicant must:
- (a) make the following information and documents (as they are obtained or approved) publicly available on its website:
 - (i) the documents referred to in condition A2 of this consent;
 - (ii) all current statutory approvals for the development;
 - (iii) all approved strategies, plans and programs required under the conditions of this consent excluding any document described in conditions B49, B51 and B52;

- (iv) the proposed staging plans for the development if the construction, operation or decommissioning of the development is to be staged;
 - (v) regular reporting on the environmental performance of the development in accordance with the reporting requirements in any plans or programs approved under the conditions of this consent;
 - (vi) a comprehensive summary of the monitoring results of the development, reported in accordance with the specifications in any conditions of this consent, or any approved plans and programs;
 - (vii) a summary of the current stage and progress of the development;
 - (viii) contact details to enquire about the development or to make a complaint;
 - (ix) a complaints register, updated quarterly;
 - (x) the Compliance Report of the development;
 - (xi) any other matter required by the Planning Secretary; and
- (b) keep such information up to date, to the satisfaction of the Planning Secretary.

APPENDIX 1 DEVELOPMENT LAYOUT PLANS

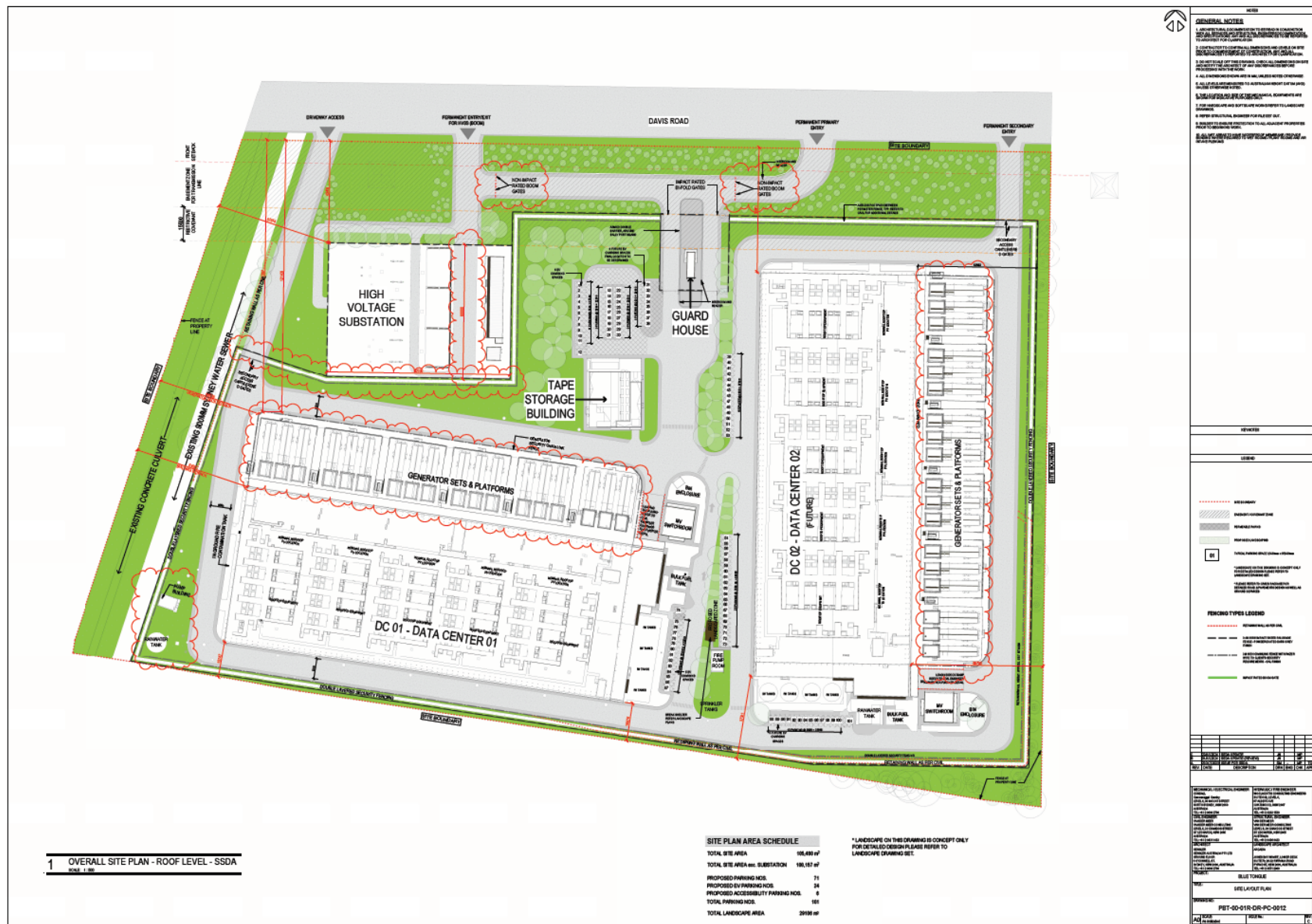


Figure 1: Site Plan

PROJECT NO.	DRAWING NO.	REV	DATE	TITLE
Architectural drawings prepared by Gensler Australia Pty Ltd				
SYD067	SYD067-CDL-00-XX-DR-A-1011	I	10/10/2024	SITE LAYOUT PLAN
SYD067	PC-2000	C	22/07/2024	GROUND FLOOR GENERAL ARRANGEMENT PLAN
SYD067	PC-2001	C	22/07/2024	GROUND LEVEL MEZZANINE GENERAL ARRANGEMENT PLAN
SYD067	PC-2002	C	22/07/2024	1 ST FLOOR GENERAL ARRANGEMENT PLAN
SYD067	PC-2003	C	22/07/2024	1 ST FLOOR MEZZANINE GENERAL ARRANGEMENT PLAN
SYD067	PC-2004	C	22/07/2024	2 ND FLOOR GENERAL ARRANGEMENT PLAN
SYD067	PC-2005	C	22/07/2024	2 ND FLOOR MEZZANINE GENERAL ARRANGEMENT PLAN
SYD067	PC-2006	C	22/07/2024	ROOF FLOOR GENERAL ARRANGEMENT PLAN
SYD067	PC-4000	C	22/07/2024	TYPICAL BUILDING ELEVATIONS – DC01, DC02 – 1 OF 2
SYD067	PC-4001	C	22/07/2024	TYPICAL BUILDING ELEVATIONS – DC01, DC02 – 2 OF 2
SYD067	PC-4200	C	22/07/2024	SUBSTATION ELEVATIONS
SYD067	PC-4300	C	22/07/2024	GUARDHOUSE & MV ROOM PLANS & ELEVATIONS
SYD067	PC-4400	C	22/07/2024	TAPE STORAGE BUILDING PLANS & ELEVATIONS
SYD067	PC-4500	C	22/07/2024	WATER SPRINKLER PUMP ROOM & TANK – PLANS, SECTION AND ELEVATIONS
SYD067	PC-5000	C	22/07/2024	SITE SECTIONS
SYD067	PC-5001	C	22/07/2024	BUILDING SECTIONS – LONG
SYD067	PC-5002	C	22/07/2024	BUILDING SECTIONS - SHORT
Landscape Plan prepared by Arcadia Pty Ltd				
PBT-ALA-XX-XX-DR-L-2000		J	03/07/2024	LANDSCAPE MASTERPLAN
PBT-ALA-XX-XX-DR-L-3001		J	03/07/2024	GENERAL ARRANGEMENTS PLAN 01
PBT-ALA-XX-XX-DR-L-3002		J	03/07/2024	GENERAL ARRANGEMENTS PLAN 02
PBT-ALA-XX-XX-DR-L-3003		J	03/07/2024	GENERAL ARRANGEMENTS PLAN 03
PBT-ALA-XX-XX-DR-L-3004		J	03/07/2024	GENERAL ARRANGEMENTS PLAN 04
PBT-ALA-XX-XX-DR-L-6001		J	03/07/2024	SECTIONS

PBT-ALA-XX-XX-DR-L-6002	J	03/07/2024	SECTIONS
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APPENDIX 2 Sensitive Receiver Locations

APPENDIX 3 Biodiversity Ecosystem Credits

Table 5: Ecosystem credits required to be retired – like-for-like

PCT	TEC	Number of ecosystems credits	IBRA sub-regions from which the credit can be sourced
3320 – Cumberland Shale Plains Woodland	Cumberland Plain Woodland in the Sydney Basin Bioregion	18	Cumberland, Burragorang, Pittwater, Sydney Cataract, Wollemi and Yengo; or Any IBRA subregion that is within 100 kilometers of the outer edge of the impacted site.

APPENDIX 4 APPLICANT'S MANAGEMENT AND MITIGATION MEASURES

By:	Cundall Johnston and Partners Pty Limited
In relation to:	State Significant Development Application (SSD-594 16728) For Davis Road Data Centre (Cundall)
Site:	3 Davis Road, Wetherill Park Lot 1 DP 864615

Cundall plan to undertake the construction and operation of the proposed two three storey data centre buildings, a two storey Tape Storage building, a HVSS and associated infrastructure and amenities, in accordance with the following planned management and mitigation measures.

PLANNED MANAGEMENT AND MITIGATION MEASURES FOR SSD-594 16728		
ID	Management / Mitigation Measure	Timing
Administrative Commitments		
A1	Commitment to Minimise Harm to the Environment Cundall will commit to implement all reasonable and feasible measures, to prevent and/or minimise any harm to the environment, that may result from the construction or operation of the proposed development	Prior to construction, during construction, and during operation.
A2	Terms of Approval Cundall will carry out the project generally in accordance with the: (a) Environmental Impact Statement; (b) Drawings; (c) Management and Mitigation Measures; (d) Any Conditions of Approval. If there is any inconsistency between the above, the Conditions of Approval shall prevail to the extent of the inconsistency.	Prior to construction, during construction, and during operation.
A3	Occupation Certificate Cundall will ensure that Occupation Certificates are obtained prior to the occupation of the facilities.	Prior to operation.
A4	Compliance Cundall will ensure compliance with any reasonable requirement(s) of the Secretary of the NSW DPE arising from the assessment of: (a) Any reports, plans, programs, strategies or correspondence that are submitted in relation to this Approval; and (b) The implementation of any recommended actions or measures contained in reports, plans, programs, strategies or correspondence submitted by the Project Team as part of the application for Approval.	Prior to construction, during construction, and during operation.
A5	Structural Adequacy Cundall will ensure that all new buildings and structures on the site are constructed in accordance with the relevant requirements of the National Construction Code.	During construction.
A6	Construction Environmental Management Plan	Prior to construction.

PLANNED MANAGEMENT AND MITIGATION MEASURES FOR SSD-594 16728		
ID	Management / Mitigation Measure	Timing
	Prior to the commencement of construction, Cundall would prepare a Construction Environmental Management Plan (CEMP) that addresses the following: (a) Air Quality; (b) Noise and Vibration; (c) Waste Classification; (d) Erosion and Sediment Control; (e) Materials Management Plan; (f) Acid Sulfate Soils and Salinity; and (g) Community Consultation and Complaints Handling.	
A7	Site Induction All staff employed on the site by the construction contractor will be required to undergo a site induction.	Prior to construction.
A8	Operation of Plant and Equipment Cundall will ensure that all plant and equipment used on-site, is maintained and operated in proper and efficient manner, and in accordance with relevant Australian Standards.	During operation.
A9	Monitoring the State of Roadways Cundall will monitor the state of roadways leading to and from the subject site, during construction, and will take all necessary steps to clean up any adversely impacted road pavements as directed by the Fairfield City Council.	During construction.
A10	Waste Receipts Cundall will ensure that a permanent record of receipts, for the removal of both liquid and solid waste from the subject site, be kept and maintained up to date at all times. Such records will be made available to authorised person upon request.	During construction and operation.
A11	Complaints Handling Cundall will prepare an Operational Complaints Handling Protocol for the development, prior to the commencement of operations.	Prior to operation.
A12	Soil and Water Management A Soil and Water Management Plan (SWMP) and Erosion and Sediment Control Plan (ESCP), or equivalent, will be implemented for the construction of the proposed development.	Prior to and during construction.
Specific Environmental Commitments		
Air Quality		
AQ1	Air quality mitigation and monitoring will form part of the CEMP, to be prepared for the project, as outlined in A6.	Prior to construction.
Traffic and Transport		
TT1	Cundall will finalise and implement the Construction Traffic Management Plan (CTMP).	Prior to and during construction.
TT2	Finalise and implement the Green Travel Plan (GTP) prior to occupation of the development.	Prior to occupation

PLANNED MANAGEMENT AND MITIGATION MEASURES FOR SSD-594 16728		
ID	Management / Mitigation Measure	Timing
TT3	Implement the GTP and ensure ongoing compliance and monitoring.	Ongoing
TT4	Implement the Operational Traffic Management Plan and ensure ongoing compliance and monitoring.	Ongoing
Hazards & Risks		
HR1	The management of each of the substances proposed to be stored on-site should be carried out in accordance with their respective safety data sheet.	During operation.
HR2	The management strategies detailed within the salinity management plan prepared by Douglas Partners is to form part of the CEMP, as outlined in A6.	Prior to construction.
HR3	Adopt a construction storm water management plan and associated erosion and sediment control measures in accordance with the Blue Book and Council requirements.	Prior to construction.
HR4	Cundall will finalise and implement the Remediation Action Plan (RAP).	Prior to and during construction.
HR5	The remediation works are to be validated as meeting the remediation acceptance criteria by the Environmental Consultant by means of visual inspection, field screening, recovery and analysis of samples and review of any available plans as set out in this report.	Prior to and during construction.
HR6	Additional areas of contamination encountered during the course of the remediation and site redevelopment will be subject to the contingency plan or unexpected find protocol to be developed prior to construction.	During construction.
HR7	Dangerous goods shall be stored in accordance with the <i>Work Health and Safety Regulation 2017</i> and any documentation required by the Regulation shall be prepared prior to occupying the space with DGs.	During construction and operation
Cultural Heritage		
H1	An Unexpected Finds Policy will be developed, in the unlikely event that relics are identified during ground disturbing works.	Prior to construction.
H2	Unexpected Aboriginal objects remain protected by the <i>National Parks and Wildlife Act 1974</i> . If any such objects, or potential objects, are uncovered in the course of the activity, all work in the vicinity will cease immediately. A qualified archaeologist would be contacted to assess the find and Heritage NSW and Metropolitan Local Aboriginal Land Council would be notified.	During construction.
H3	If human remains, or suspected human remains, are found in the course of the activity, all work in the vicinity will cease, the site would be secured, and the NSW Police and Heritage NSW would be notified.	During construction.
H4	All relevant staff, contractors and subcontractors will be made aware of their statutory obligations for heritage under the <i>NSW Heritage Act 1977</i> and best practice as outlined in <i>The Burra Charter 2013</i> , during site inductions.	Prior to construction.

PLANNED MANAGEMENT AND MITIGATION MEASURES FOR SSD-594 16728		
ID	Management / Mitigation Measure	Timing
Socio-Economic		
SE1	A Stakeholder Management Plan (SMP) will be prepared and implemented.	During construction.
SE2	A Plan of Operation and Management (POM) will be prepared and implemented	Prior to and during operation.
Waste Management		
WM1	A detailed Construction Waste Management Plan will be prepared and form part of the CEMP (A6).	Prior to construction
WM2	The Operational Waste Management Plan shall be completed and implemented.	Prior to and during operation
ESD		
E1	An environmental management plan shall be completed and implemented in accordance with the recommendations made within the ESD Report.	Prior to construction, during construction, and during operation.
Biodiversity		
B1	Preparation of a Construction Environmental Management Plan (CEMP)	Prior to construction
B2	Assigning a Project Ecologist for vegetation clearing	During construction
B3	Appropriate erosion and sediment control must be erected and maintained at all times during construction in order to avoid the potential of incurring indirect impacts on biodiversity values.	Prior to construction and during construction
B4	Temporary fencing should be erected around retained native canopy vegetation in the south eastern portion of the site that may incur indirect impacts on biodiversity values due to the construction works.	Prior to construction and during construction
B5	Potential impacts relating to storm water and runoff will be managed during construction and operation phases.	During construction, and during operation.
Noise and Vibration		
NV1	Incorporation of construction noise barriers around the site boundary with a minimum height of 3 m to block direct line of sight between noisy construction sources and activities and adjoining industrial premises.	Prior to construction and during construction
NV2	Construction noise barrier should achieve a minimum surface density of 10 kg/m ² where practical and have no gaps on the face or bottom.	Prior to construction and during construction
NV3	Prepare a Construction Noise and Vibration Management Plan as part of the CEMP (A6).	Prior to and during construction
NV4	Sound attenuators for the DAHU Gallery before the façade louvres achieving a minimum static insertion loss.	Prior to operation
NV5	Generators achieve the maximum sound power levels detailed in the Noise and Vibration Impact Assessment with adequate sound attenuation measures incorporated within the containerised system including intake, discharge and exhaust system.	Prior to operation
NV6	Limiting the testing routine to be one generator and one load bank operating at 100% as part of testing routine or up	During operation

PLANNED MANAGEMENT AND MITIGATION MEASURES FOR SSD-594 16728		
ID	Management / Mitigation Measure	Timing
	to six (6) backup power generators running with no load bank for DC01 and up to three (3) for DC02.	
NV7	Final equipment selections and design to achieve the maximum sound power levels outlined in the Noise and Vibration Impact Assessment.	Prior to operation
NV8	Solid rooftop parapet/screen with a minimum height equivalent to at least 100 mm above the highest point of REFA Fans (about 2.9 m). Solid parapet/screen to be constructed from a material with minimum surface density of 5 kg/m ² with no gaps on face or bottom.	Prior to operation
NV9	Selection and maintenance of low vibration equipment where practicable.	Prior to construction and during construction
NV10	Use only dampened rockbreakers and/or "city" rockbreakers to minimise the impacts associated with rockbreaking works.	Prior to construction and during construction
NV11	Trial testing of vibration levels is to be conducted where equipment identified as having the potential to exceed the human comfort criteria or where the vibration intensive plant or equipment is required to operate in close proximity to sensitive structure exceeding the nominated minimum working distances.	Prior to construction and during construction
NV12	Trial vibration monitoring to determine appropriate work distances of proposed demolition activities.	Prior to construction and during construction
NV13	Utilise the smallest practicable size of plant equipment when in close proximity to the sensitive structure (e.g., small vibratory roller).	Prior to construction and during construction
NV15	Establish and maintain a project information line available at all times. Communicate the contact details to potentially affected residences and include them in public notifications. Implement and document a complaints process with an escalation procedure for unresolved issues.	Prior to and during construction
NV16	Where reasonable all plant and equipment must be fitted with efficient silencers and low-noise mufflers. Ensure regular maintenance, including the repair of defective silencers, tightening of rattling components, and addressing air leakages.	During construction
NV17	A summary of relevant noise-related approval conditions should be displayed on-site for the reference of workers.	During construction
NV18	Ensure that construction traffic minimises noise by planning one-way traffic flows and using main road networks. Heavy vehicles should avoid idling and be instructed on minimising noise during site entry and exit.	During construction
NV19	Notify affected residents and sensitive land uses of works outside standard hours between five and 14 days before commencement.	During construction

APPENDIX 5 INCIDENT NOTIFICATION AND REPORTING REQUIREMENTS

WRITTEN INCIDENT NOTIFICATION REQUIREMENTS

1. All incident notifications and reports must be submitted via the NSW planning portal (Major Projects).
2. The Applicant must provide notification as required under these requirements, even if the Applicant fails to give the notification required under condition C10 or, having given such notification, subsequently forms the view that an incident has not occurred.
3. Within **7 days** (or as otherwise agreed by the Planning Secretary) of the Applicant making the immediate incident notification (in accordance with condition C10), the Applicant is required to submit a subsequent incident report that:
 - (a) identifies how the incident was detected;
 - (b) identifies when the Applicant became aware of the incident;
 - (c) identifies any actual or potential non-compliance with conditions of consent;
 - (d) identifies further action(s) that will be taken in relation to the incident; and
- (a) a summary of the incident;
- (b) outcomes of an incident investigation, including identification of the cause of the incident;
- (c) details of the corrective and preventative actions that have been, or will be, implemented to address the incident and prevent recurrence, including the period for implementing any corrective and/or preventative actions; and
- (d) details of any communication with other stakeholders regarding the incident.
4. The Applicant must submit any further reports as directed by the Planning Secretary.

INCIDENT REPORT REQUIREMENTS

5. Within 30 days of the date on which the incident occurred or as otherwise agreed to by the Planning Secretary, the Applicant must provide the Planning Secretary and any relevant public authorities (as determined by the Planning Secretary) with a detailed report on the incident addressing all requirements below, and such further reports as may be requested.
6. The Incident Report must include:
 - (a) a summary of the incident;
 - (b) outcomes of an incident investigation, including identification of the cause of the incident;
 - (c) details of the corrective and preventative actions that have been, or will be, implemented to address the incident and prevent recurrence; and
 - (d) details of any communication with other stakeholders regarding the incident.